

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

June 15, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Donovan v. Taft 2021-01225158	Attorneys Gina M. Austin/Tamara Rozmus of Austin Legal Group's motion to be relieved as counsel of record for defendant Robert Taft is DENIED without prejudice. An attorney seeking to be relieved must use Judicial Council forms when seeking court approval for withdrawal. California Rules of Court, Rule 3.1362 specifically require that "[t]he motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052)." Ca. Rules of Court, Rule 3.1362. Although the moving attorneys may have good cause for the requested relief, the Mandatory Judicial Council form was not utilized. As such, the court has no choice but to deny the motion without prejudice. Attorney Gina Austin shall give notice of this ruling.
51.	Valvano v. Hurtado 2025-01515962	The motion of attorney Victoria E. Edwards to be relieved as counsel of record for defendant Jeffrey B. Moreno is DENIED without prejudice. The motion and declaration are not signed by attorney Edwards. As a result, there is no evidence in support of the motion. In the event counsel seeks to refile this motion, counsel should also expressly address the status of the law firm of Adams & Reese, LLP and any other attorneys from that firm, in the event they also seek to be relieved as counsel. Moving attorney shall give notice of this ruling.
52.	J.C. v. Marriott International, Inc. 2025-01530620	Defendant Marriott International, Inc. erroneously sued and served as Anaheim Marriott Hotel's demurrer to the Complaint is OVERRULED. A motion to strike (not a demurrer), is the proper vehicle to challenge an allegedly improper remedy. (<i>Kong v. City of Hawaiian Gardens Redevelopment Agency</i> (2002) 108 Cal.App.4th 1028, 1047 ["a demurrer cannot rightfully be sustained ... to a particular type of damage or remedy"]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 ["demurrer does not lie to a portion of a cause of action"].) Defendant's motion to strike punitive damages allegations is GRANTED, with leave to amend. (Code Civ. Proc., §§ 435, 436 [authorizing motion]; Civ. Code., § 3294 [authorizing

#	Case Name	Tentative
		punitive damages]; <i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193 [specific factual allegations required for punitive damages].) The Complaint does not allege sufficient facts, as opposed to conclusions, showing "despicable" conduct (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210), or entity liability (Civ. Code., § 3294, subd. (b); <i>Cruz v. HomeBase</i> (2000) 83 Cal. App. 4th 160, 167.) The Complaint alleges that defendants knew the firepit was defective, and did not heed warning labels on the bioethanol fuel, but there are no facts alleged, as opposed to conclusions, showing that defendants, and/or any officer, director, or managing agent, knew or should have known of the potentially dangerous or extreme consequences of using bioethanol fuel outside of a ventless fireplace. (Complaint, ¶¶ 4-6, 28, 31, 41-44.) Accordingly, the court orders the following allegations stricken: 1. Page 1, lines 7-9, which reads: "...the defendants engaged in conduct with a conscious disregard for the rights of Plaintiff and intended to cause harm." 2. Page 6, line 14-15, which reads: "...its employees acted in conscious and reckless disregard for guest safety..." 3. Page 7, line 13, which reads: "Defendants acted in conscious disregard of the safety of each Plaintiff..." 4. Pages 8-9, Allegations Supporting Punitive Damages, in its entirety; 5. Page 10, Prayer for Relief number three in its entirety, which reads: "For punitive damages under Civil Code § 3294." Plaintiffs are granted 15 days' leave to amend. The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28. The order to show cause is discharged. Moving party shall give notice of this ruling.
53.	Logan & Logan Construction, Inc. v. RRCZ Investments LLC	Defendants Stacie Andrella and Kathleen Hollins' demurrer to Plaintiff Logan & Logan Construction, Inc.'s First Amended Complaint ("FAC") is SUSTAINED as to the Fourth Cause of Action for Fraud – False Promise as to Defendant Kathleen Hollins only. The demurrer is otherwise OVERRULED. Within 10 days of this ruling, Plaintiff may file a Second Amended Complaint to address the deficiency in the Fourth Cause of Action, as it pertains to Defendant Hollins. If a

#	Case Name	Tentative
	2024-01430488	Second Amended Complaint is not filed within 10 days of this ruling, Defendants shall file an answer to the First Amended Complaint within 30 days of this ruling. Plaintiff's Request for Judicial Notice is DENIED. The Court's prior rulings are not relevant to the issues raised in Defendants' demurrer and motion to strike. While Plaintiff's Opposition is untimely, Defendants have addressed it on the merits. The Court will exercise its discretion and consider the late-filed Opposition. All counsel are admonished that there is no certainty that the Court will exercise its discretion in a similar manner in the future should parties fail to comply with deadlines. <u>General Standards Related to Demurrers</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) <u>Defendants' Special Demurrer for Uncertainty</u> Demurrers for uncertainty are disfavored. The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that a defendant cannot reasonably respond. <i>Khoury v. Maly's of California Inc.</i> (1993) 14 Cal.App.4th 612, 616. Any claimed uncertainties created by the complaint must be specified in the demurrer and specify where such uncertainty appears by page and line numbers of the complaint. <i>Fenton v. Groveland Comm. Services Dist.</i> (1982) 135 Cal.App.3d 797, 765. Demurring Defendants fail to specify by page and line number which contradicting allegations render the complaint so confusing as to render it incapable of being answered. Defendants' demurrer is premised on the assertion that the FAC relies upon insufficient allegations of alter ego liability.

#	Case Name	Tentative
		This alleged defect does not preclude a meaningful intelligent response to the FAC. Any potential challenges can be clarified through discovery. The special demurrer is OVERRULED. <u>Alter Ego Allegations</u> Defendants' demurrer is primarily premised on the contention that the individual defendants are not properly named as Defendants because the allegations of the First Amended Complaint only identify conduct of Defendant RRCZ. Demurring Defendants reason that the alter ego allegations of the FAC are legal conclusions without factual support. The FAC contains sufficiently pleaded allegations of alter ego liability for purposes of a challenge to the pleadings. (See, e.g., <i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 235-236 ["Defendants argue that Rutherford failed to allege specific facts to support an alter ego theory, but Rutherford was required to allege only 'ultimate rather than evidentiary facts.'"].) Specifically, the FAC alleges that Hollins and Andrella have abused the corporate form by using RRCZ's assets as their own, co-mingling funds, and insufficiently capitalizing RRCZ to the point it cannot possibly pay the debts it incurs. (FAC ¶27.) Plaintiff further alleges that if RRCZ's separate existence were to be recognized, it would sanction fraud or promote injustice. (FAC ¶28.) The FAC sufficiently alleges the ultimate facts sufficient to plead alter ego liability and the demurrer is OVERRULED to the extent it relies upon contentions that alter ego liability is insufficiently pleaded. Below is an analysis of the demurrer to the individual causes of action. <u>Breach of Contract</u> The elements of a claim for breach of contract are (1) the existence of a contract; (2) the plaintiff's performance or excuse from performance of the contract; (3) the defendant's breach; and (4) resulting damages to the plaintiff. (See <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Demurring Defendants argue that the FAC fails to allege facts showing that either of the individual defendants were parties to any alleged contract. As discussed above, the FAC sufficiently alleges that both Hollins and Andrella were alter egos of RRCZ, and as such, the FAC sufficiently alleges the elements of a cause of action for breach of contract.

#	Case Name	Tentative
		The demurrer to this cause of action is OVERRULED. <u>Common Count</u> The elements of a claim for common count are “(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.” (<i>Farmers Ins. Exchange v. Zerlin</i> (1997) 53 Cal.App.4th 445, 460.) Demurring Defendants argue that this claim fails because there are no allegations that Hollins and Andrella made any request to Plaintiff for services in their individual capacities. As set forth above, the alter ego allegations are sufficient and dispose of this line of argument. Demurring Defendants also repeat arguments made in support of Defendant RRCZ’s demurrer to this cause of action which have already been considered by the Court and overruled. The demurrer to this cause of action is OVERRULED. <u>Account Stated</u> “The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due.” (<i>Zinn v. Fred R. Bright Co.</i> (1969) 271 Cal. App. 2d 597, 600.) “When a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered.” (<i>Maggio, Inc. v. Neal</i> (1987) 196 Cal. App. 3d 745, 753.) Demurring Defendants argue that this claim fails because no allegations are made against them in their capacity as individuals. Since the court has found the alter ego allegations to be sufficient for purposes of a pleadings challenge, this argument fails. Demurring Defendants also repeat arguments made in support of Defendant RRCZ’s demurrer to this cause of action which have already been considered by the Court and overruled. The demurrer to this cause of action is OVERRULED. <u>Promissory Fraud</u> To plead a legally sufficient cause of action for fraud, the pleader must allege (1) a misrepresentation; (2) the defendant’s knowledge of the falsity of the misrepresentation;

#	Case Name	Tentative
		(3) intent to induce plaintiff's reliance on the misrepresentation; (4) actual reliance upon the misrepresentation; (5) causation; and (6) resulting damages. (<i>Robinson Helicopter Co., Inc. v. Dana Corp.</i> (2005) 35 Cal.4th 979, 990.) Additionally, fraud must be pleaded specifically to withstand a general demurrer. Thus, to state a legally sufficient cause of action for fraud, a plaintiff must plead specific facts that "show how, when, where, to whom, and by what means the representations were tendered." (<i>Hamilton v. Greenwich Investors XXVI, LLC</i> (2011) 195 Cal.App.4th 1602, 1614.) When alleging fraud against a corporate defendant, the level of specificity is even higher. Namely, a plaintiff must "allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 645.) "Promissory fraud is a subspecies of the action for fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud." (<i>Lazar, Supra.</i> 12 Cal.4th at 638.) A cause of action for promissory fraud must be pleaded with specificity. (<i>Beckwith v. Dahl</i> (2012) 205 Cal.App.4th 1039 [applying heightened specificity requirement for pleading false promise].) Demurring Defendants argue that this cause of action fails because it is not pleaded with sufficient particularity as to either of the individual Defendants. The Court has already found that this cause of action is pleaded with sufficient particularity as it pertains to Defendant RRCZ. And the Court has also found the alter ego allegations in the FAC sufficient. Therefore, the demurrer to this cause of action asserted by these Defendants is OVERRULED to the extent it is premised on an alter ego theory. The Court also finds that this cause of action is sufficiently pleaded as to Defendant Andrella based on Andrella's individual conduct. The FAC alleges that Andrella made a promise to perform on the deferred payment arrangement. The FAC alleges that Andrella made this promise orally to Greg Logan, one of Plaintiff's principals. The FAC alleges that Andrella made this promise on 7/1/21. (FAC ¶47.) The FAC alleges that Andrella had no intention of performing on this promise at the time it was made. (FAC ¶48.) This is sufficient specificity to state a cause of action for promissory fraud

#	Case Name	Tentative
		against Andrella based on a theory of direct liability. The demurrer is OVERRULED on these grounds. However, absent from the FAC are any alleged facts Hollins undertook personally. Further, Hollins is not alleged to have any knowledge of this promise or any involvement in it. Accordingly, the demurrer is SUSTAINED with leave to amend to the extent Plaintiff seeks to assert a claim against Hollins for direct liability concerning the cause of action for promissory fraud. <u>Motion to Strike</u> Defendants Stacie Andrella and Kathleen Hollins' Motion to Strike Portions of the First Amended Complaint is GRANTED in part. (Code Civ. Proc. §436, subd. (a).) The Motion is GRANTED as to FAC ¶51 because Plaintiffs improperly allege an amount of punitive damages sought. Pursuant to Civ. Code §3295, subd. (e) "[n]o claim for exemplary damages shall state an amount or amounts." Accordingly, the language "in the amount of at least \$1,000,000.00." is hereby STRICKEN from FAC ¶51. The Motion is DENIED as to the prayer for punitive damages because Plaintiff has alleged a sufficient cause of action for fraud, which is sufficient to support a prayer for punitive damages. The motion is DENIED as to FAC ¶¶ 25-28. A demurrer, rather than a motion to strike, is the correct vehicle for challenging these allegations. And Defendants did demur to these paragraphs, which the Court overruled. The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28. Plaintiff shall provide notice of this ruling.
54.	Jones v. Myers 2026-01542899	Plaintiff Desiree Jones' "Motion to Set Aside Default and Vacate Judgment," seeking to set aside this court's 5-5-26 order on a special motion to strike by defendant Susanne Myre, erroneously sued as Susanne Myers, is DENIED. Moving party contends the special motion to strike was improperly served, and requests the 5-5-26 order thereon be vacated, citing Code Civ. Proc., §§ 473, subd. (d), and 473.5. Code Civ. Proc., § 473.5 is not applicable, as it authorizes relief from "default or default judgment and for leave to defend the action" where "service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against

#	Case Name	Tentative
		the party in the action.” (Code Civ. Proc., § 473.5, subd. (a).) The instant motion seeks relief from an order on a special motion to strike pursuant to Code Civ. Proc., § 425.16, not a default or default judgment resulting from insufficient notice after service of summons. Nor has moving plaintiff shown the 5-5-26 order is void. (Code Civ. Proc., §§ 473, subd. (d).) There is no requirement that defendant personally serve the special motion to strike, nor to serve file-stamped copies. (Ex. C to moving papers [requesting personal service of file-stamped copies of anti-SLAPP motion]; Code Civ. Proc., §§ 1005, subds. (a)(13), (b) [authorizing service by mail, express mail, or “another method of delivery providing for overnight delivery,” for “[a]ny other proceeding under this code in which notice is required, and no other time or method is prescribed by law or by court or judge”], 1010 [“Notices and other papers may be served upon the party or attorney in the manner prescribed in this chapter, when not otherwise provided by this code”].) Moving party also argues that she did not consent to electronic service of the special motion to strike, as required for unrepresented parties. (Cal. Rules of Court, Rule 2.251, subd. (c)(3)(B), and Rule 2.253, subds. (b)(2).) As noted in the 5-5-26 order, notwithstanding any service defects of the special motion to strike, plaintiff filed an opposition on the merits, did not argue that service was defective, and did not articulate any prejudice resulting from service issues; accordingly, the court found that plaintiff’s opposition on the merits to the special motion to strike thus waived any service issues as to the moving papers. (ROA 35 [5-5-26 minute order, citing, <i>inter alia</i>, <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect]; see also <i>Reedy v. Bussell</i> (2007) 148 Cal.App.4th 1272, 1288 [written opposition to motions that “never so much as suggested notice was defective” waived service/notice defects].) The instant motion fails to address this portion of the court’s 5-5-26 order finding waiver of service / notice defects as to the moving papers on the special motion to strike, due to plaintiff’s opposition on the merits. To the extent the instant motion presents additional evidence regarding the merits of plaintiff’s claims (Ex. E), it appears plaintiff may also be seeking reconsideration of the 5-5-26 order. (Code Civ. Proc., § 1008 [motions for reconsideration]; see also <i>Sole Energy Co. v. Petrominerals Corp.</i> (2005) 128 Cal.App.4th 187, 193 [court’s discretion to consider motion based on the relief sought].) However, plaintiff fails to

#	Case Name	Tentative
		"provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (<i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 212; see also <i>Garcia v. Hejmadi</i> (1997) 58 Cal.App.4th 674, 690 ["strict requirement of diligence" for reconsideration motions].) Defendant shall give notice of this ruling.
55.	Baca v. Baca 2026-01546605	Defendant Carey M. Baca's motion to stay or dismiss this action for inconvenient forum pursuant to C.C.P. § 418.10(a)(2) and § 410.30 is DENIED. The alternative request under C.C.P. § 430.10(c) is GRANTED in part. Defendant's request under C.C.P. § 418.10 is DENIED as defendant fails to explain how proceeding with this action in this court would be an unjust or unfair. The burden of proof is on defendant as the moving party. <i>Stangvik v. Shiley Inc.</i> (1991) 54 Cal. 3d 744, 751. The court assumes, without deciding, that Nevada could be a suitable forum. Defendant must also show that the private interests of the litigants and the public interests also favor defendant. Defendant fails to make this showing. First, "plaintiff's choice of a forum should rarely be disturbed unless the balance is strongly in favor of the defendant." <i>Id.</i> at 754. "[P]laintiff's choice of forum is presumed to be convenient and [] a state has a strong interest in assuring its own residents an adequate forum for the redress of grievances." <i>Id.</i> at 754-755. Defendant has not presented evidence addressing these criteria, other than (1) defendant's residence is Nevada; and (2) there is another action currently pending in Nevada that involves some but not all of the claims asserted in the current action. Defendant's motion pursuant to C.C.P. § 418.10 is therefore denied. And based on the same rationale, the motion pursuant to § 410.30 is also DENIED. However, the court GRANTS defendant's motion pursuant to C.C.P. § 430.10(c) and STAYS this litigation. The Nevada action and the current action involve the same premise: allegations that defendant created a fraudulent or unenforceable power of attorney in June 2023. (Compl. at ¶ 17; Exh. E ¶ 20). Both the Nevada action and the current action require two different courts to determine the validity of the June 2023 power of attorney, and seek remedies that would flow therefrom. The Nevada action (filed in February 2024) and the current action (filed in February 2026) involve exclusive concurrent jurisdiction analysis. "The established rule of exclusive concurrent jurisdiction provides that where two or more courts

#	Case Name	Tentative
		possess concurrent subject matter jurisdiction over a cause, the court that first asserts jurisdiction assumes it to the exclusion of all other courts. In essence, the rule renders concurrent jurisdiction exclusive with the first court." <i>County of Siskiyou v. Superior Court</i> (2013) 217 Cal. App. 4th 83, 89. Section 430.10(c) allows for a demurrer when "[t]here is another action pending between the same parties on the same cause of action." While the Nevada action and the current action seek some different remedies, the disputed contention is identical: the validity of the June 2023 power of attorney. Plaintiffs do not dispute this. Rather, plaintiffs assume that the Nevada action will reach its conclusion prior to any decision by this court: "[W]e will not see a situation in which this Court makes a different ruling than the Nevada Court's imminent adjudication on that issue, simply because any such adjudication could not occur until well after the Nevada Court has decided the issue." (Opp. at p. 5). While that may be true, the court is not willing to risk that it may not be true. "Granting a stay in a case where the issues in two actions are substantially identical is a matter addressed to the sound discretion of the trial court. In exercising its discretion the court should consider the importance of . . . avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider . . . the stage to which the proceedings in the other court have already advanced." <i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal. 2d 738, 746-747. Based on the foregoing, this litigation is STAYED until further order of this court. The case management conference is VACATED. The court sets a status conference regarding the stay for August 28, 2026 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are order to file a joint statement addressing the Nevada action. Plaintiffs shall give notice of this ruling.
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#	Case Name	Tentative
59.	Alexander v. E Mortgage Capital, Inc. 2023-01350484	#59 Defendant E Mortgage Capital, Inc.'s Motion for Summary Judgment is DENIED. Defendant E Mortgage Capital, Inc.'s Motion for Summary Adjudication is GRANTED Issues 10 and 11 and DENIED as to Issues 1, 2, 3, 4, 5, 6, 7, 8, and 9. A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].) A cause of action "cannot be established" if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action "cannot be established" by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (1995) 25 Cal.4th at 854-55) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific

#	Case Name	Tentative
		facts, the existence of a triable issue as to that affirmative defense or cause of action. (<i>Id.</i>; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (<i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510.) .) "In some instances . . . , 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.) "'If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (<i>Saelzler v. Advanced Group 400</i> (2001) 25 Cal.4th 763, 780, quoting <i>Leslie G. v. Perry & Associates</i> (1996) 43 Cal.App.4th 472, 482.) In ruling on a motion for summary judgment, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar, supra</i>, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All-Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201-1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact." (<i>Johnson v. United Cerebral Palsy, etc.</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) "[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . ." (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>Issue 1: Hostile Work Environment</u>

#	Case Name	Tentative
		The elements of a FEHA claim of harassment creating hostile work environment are: (i) plaintiff is a member of a protected class; (ii) plaintiff was subjected to unwelcome harassment; (iii) the harassment was based on plaintiff's protected status; (iv) the harassment unreasonably interfered with plaintiff's work performance by creating an intimidating, hostile, or offensive work environment; and (v) defendants are liable for the harassment. (<i>Ortiz v. Dameron Hospital Assn.</i> (2019) 37 Cal.App.5th 568, 581.) FEHA is violated when the harassment is sufficiently severe or pervasive to alter the conditions of the plaintiff's employment. (<i>Aguilar v. Avis Rent A Car System, Inc.</i> (1999) 21 Cal.4th 121, 130; see also <i>Kelly-Zurian v. Wohl Shoe Co.</i> (1994) 22 Cal.App.4th 397, 409: "When the workplace is permeated with discriminatory intimidation, ridicule and insult that is 'sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment,' the law is violated."). "In determining what constitutes 'sufficiently pervasive' harassment, the courts have held that acts of harassment cannot be occasional, isolated, sporadic, or trivial, rather the plaintiff must show a concerted pattern of harassment of a repeated, routine of a generalized nature. [Citation.]" (<i>Etter v. Veriflo Corp.</i> (1998) 67 Cal.App.4th 457, 465, citing <i>Fisher v. San Pedro Peninsula Hospital</i> (1989) 214 Cal.App.3d 590, 609-610.) Gov. Code §12923 clarifies how the legislature intends laws prohibiting workplace harassment to be construed. Notably, Gov. Code §12923, subd. (b) provides that "[a] single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." Defendant has failed to meet its initial burden on summary adjudication. To do so, Defendant must address every theory of liability pleaded and demonstrate there are no material issues of fact in dispute as to any of them. Defendant's motion fails to address the allegations that Yvonne Ramos would repeatedly touched Plaintiff in what he perceived to be a sexually offensive manner while he was working in the office. Namely, Defendant's SSUMF No. 37 states "Plaintiff's sexual harassment claim includes allegations of public displays of affection between Yvonne Ramos and Maximus Flore and incidental touching of his shoulder or back by Yvonne Ramos."

#	Case Name	Tentative
		This does not sufficiently negate these allegations as a basis for Plaintiff's sexual harassment cause of action. Summary Adjudication is DENIED as to Issue 1. <u>Issues 2, 4, and 5: Retaliation, Lab. Code §1102.5 Retaliation, and Wrongful Termination</u> Defendant has met its initial burden as to Issues 2, 4 and 5 by establishing a legitimate, non-retaliatory basis for Plaintiff's termination. (<i>McGrory v. Applied Signal Technology, Inc.</i> (2013) 212 Cal. App. 4th 1510, 1524; <i>Loggins v. Kaiser Permanente Intern.</i> (2007) 151 Cal.App.4th 1102, 1108-09; <i>Yanowitz v. L'Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042; <i>Vatalaro v. County of Sacramento</i> (2022) 79 Cal.App.5th 367, 387-388 [affirming summary judgment in favor of employer where it met its burden under section 1102.6 to make a same decision showing].) Namely, Defendant has shown that Plaintiff was terminated due to Plaintiff breaching the independent contractor agreement by performing unlicensed loan origination work in violation of the agreement. Plaintiff must oppose the motion by producing "substantial responsive evidence that the employer's showing was untrue or pretextual." (<i>Hersant v. California Dept. of Social Services</i> (1997) 57 Cal.App.4th 997, 1004-1005. [internal quotations omitted].) It is not sufficient to overcome summary judgment for a plaintiff to offer evidence that constitutes only "suspicions of improper motives ... based on conjecture and speculation." (<i>Kerr v. Rose</i> (1990) 216 Cal.App.3d 1551, 1564.) Plaintiff has met this minimal burden by presenting evidence that his termination was motivated by Plaintiff's complaints concerning sexually charged working conditions. (See Plaintiff's Response to Defendant's Separate Statement 18, 23-24, 26.) Accordingly, Summary Adjudication is DENIED as to Issues 2, 4, and 5. <u>Issues 3 and 9: Failure to Prevent and UCL</u> Defendant argues that summary adjudication of Issue 3 is warranted by virtue of its motion with respect to the Retaliation and Harassment claims and that the claim for failure to prevent is derivative of the harassment and retaliation claims. Since summary adjudication of Issues 1 and 2 has been denied, there is no ground to grant summary

#	Case Name	Tentative
		adjudication of this cause of action. Accordingly, the Motion for Summary Adjudication is DENIED as to Issue 3. The same reasoning applies to Issue 9. Defendant's argument in support of summary adjudication of this cause of action is that the UCL claim is derivative of Plaintiff's labor code, FEHA and contract causes of action. Since summary adjudication of the FEHA claim is denied, then there is no basis to grant summary adjudication of this derivative cause of action. Accordingly, the Motion for Summary Adjudication is DENIED as to Issue 9. <u>Issues 6-8: Wage and Hour Claims</u> Defendant met its initial burden on summary adjudication by showing that Plaintiff did not have an employee-employer relationship with Defendant. (SSUMF Nos. 3-8.) Notwithstanding the contractual provision that asserts the applicability of Bus. & Prof. Code §10032, subd. (b) to the relationship between Plaintiff and Defendant, the court finds that this provision does not apply, as Defendant has not established that Plaintiff was contracted as a licensed real estate salesperson. Plaintiff has sufficiently raised a triable issue of fact as to whether he was an employee or an independent contractor. Plaintiff has shown that Defendant provided the instrumentalities for him to conduct his work, required Plaintiff to work in the office, and the working relationship with Plaintiff involved Plaintiff reporting directly to Ramos, who controlled the tasks Plaintiff worked on in the scope of his employment with Defendant. (See Plaintiff's Additional Material Facts 53-69; see also <i>S. G. Borello & Sons, Inc. v. Department of Industrial Relations</i> (1989) 48 Cal.3d 341, 351.) Defendant alternatively argues that even if there was an employer-employee relationship, they have complied with the requirements of the labor code. But Defendant's separate statement does not establish the compliance with affirmative evidence or a showing that Plaintiff does not have evidence, nor could reasonably obtain evidence to support his wage and hour claims. Accordingly, Summary Adjudication is DENIED as to Issues 6, 7 and 8. <u>Issue 10: Slander and Libel</u> Slander and Libel are both forms of defamation. The elements of a claim of defamation are: "(1) a publication that is (2)

#	Case Name	Tentative
		false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage.” (<i>John Doe 2 v. Superior Court</i> (2016) 1 Cal.App.5th 1300, 1312.) Defendant has met its initial burden by showing that Plaintiff has admitted in discovery to not having any knowledge of any specific defamatory statement he attributes to Defendant or Ramos. (See SSUMF Nos. 35-36.) Plaintiff attempts to raise a disputed issue of fact by submitting the declaration of Molly Ryan, who attests to having been told by Ramos that Plaintiff’s employment was terminated due to his misconduct. Even if Defendant’s objections to this evidence are overruled, Plaintiff does not make a sufficient showing to raise a triable issue of fact as to the falsity or defamatory nature of the publication. Plaintiff submits no substantial evidence that any statement made about him to former clients was false and/or defamatory. Rather, Plaintiff’s own separate statement merely purports to show these are statements “a jury could find false.” Accordingly, Summary Adjudication is GRANTED as to Issue 10. <u>Issue 11: Breach of Contract</u> The elements of a claim for breach of contract are (1) the existence of a contract; (2) the plaintiff’s performance or excuse from performance of the contract; (3) the defendant’s breach; and (4) resulting damages to the plaintiff. (See <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Defendant has met its initial burden by showing (1) the only valid contract between the parties was the independent contractor agreement and that Defendant did not breach the terms of that agreement. (SSUMF 1, 3, 9, 16, 17); (2) the commissions Plaintiff alleges he is owed under the contract are expressly not permitted by the terms of the contract (SSUMF 9-10, 14-20, 27-28), ; and (3) Plaintiff’s agreement with Yvonne Ramos to be an “assistant” to process loans he is not licensed for did not involve Defendant as a contracting party (SSUMF 10, 11, 12, 13, 19, 20, 27.) Plaintiff fails to raise a genuine issue of disputed fact that would necessitate a trial of the breach of contract claims. It is undisputed that to the extent Plaintiff had made any agreement with Yvonne Ramos to serve as her assistant, any such arrangement would have to be reduced to writing and approved by Defendant in order for such an arrangement to become part of the contract between Plaintiff and Defendant. (Defendant’s Appendix, p. 16.) Accordingly, the Motion is GRANTED as to Issue 11.

#	Case Name	Tentative
		Defendant shall provide notice of this ruling.
60.	Vazquez v. Volkswagen Group of America, Inc. 2025-01459449	Defendant Volkswagen Group of America, Inc. Motion for Summary Judgement or, in the alternative, Summary Adjudication of Issues is DENIED in its entirety. <u>Plaintiff's Evidentiary Objections to the Declaration of Laura C. Pratt</u> – Objection No. 1 is SUSTAINED. <u>Plaintiff's Evidentiary Objections to the Declaration of Brannndon Beauchamp</u> – Objection Nos. 1-3, 6-10 are OVERRULED. Objection Nos. 5 and 11 are SUSTAINED. <u>Defendant's Evidentiary Objections to the Declaration of Daniel Vazquez</u> – Objection Nos. 1-9 are OVERRULED. <u>Defendant's Evidentiary Objections to the Declaration of Donald Mahnke</u> – Objection Nos. 1-21, 44, 46-51 are SUSTAINED. Objections Nos. 22-43, 45 are OVERRULED. VW seeks summary judgment on all causes of action of Plaintiff Daniel Vazquez's Complaint on the grounds that it complied with the Song-Beverly Act by promptly offering to repurchase the Subject Vehicle. Promptly Repurchase or Replace To prevail on his Song-Beverly Consumer Warranty Act claims, Plaintiff must prove that (1) Plaintiff's vehicle had defects that affected the use, value, or safety of the vehicle that VW could not repair to conform to the applicable warranty after a reasonable number of repair attempts, and (2) assuming Plaintiff can prove it was not repaired after a reasonable number of attempts, VW did not promptly offer to repurchase or replace Plaintiff's vehicle. (Cal. Civ. Code § 1793.2 (d)(2); <i>Gonzalez v. Ford Motor Co.</i>, No. LACV1900652PAASX, 2019 WL 6122554, at *5 (C.D. Cal. Oct. 23, 2019).) Section 1793.2, subdivision (d)(2) sets forth the manufacturer's affirmative obligation to "promptly" repurchase or replace a defective vehicle it is unable to conform to the applicable express warranty. "There is no set timeframe for an offer to be 'prompt.' However, courts have found offers to be prompt where 40 to 50 days elapsed between the consumers' initial requests for repurchase/replacement and the manufacturers' offers." (<i>Carver v. Volkswagen Group of America, Inc.</i> (2024) 107 Cal.App.5th 864, 879-880.) VW contends that summary judgment is appropriate on the entire complaint because it promptly offered to repurchase the Subject Vehicle. On January 13, 2025, VW received

#	Case Name	Tentative
		correspondence from Plaintiff expressing dissatisfaction regarding the Subject Vehicle. On February 14, 2025, VW requested certain documentation from Plaintiff after informing him that VW would be extending an offer to repurchase the Subject Vehicle. On March 20, 2025, VW sent a written repurchase offer to Plaintiff and Plaintiff's counsel. Thus, VW informed Plaintiff that it would extending an offer to repurchase the Subject Vehicle 32 days after Plaintiff expressed dissatisfaction with the Subject Vehicle, and sent Plaintiff a formal written repurchase offer 66 days after Plaintiff's initial communication was received by VW. VW argues it fulfilled its obligation to promptly repurchase the Subject Vehicle. In Opposition, Plaintiff argues a triable issue of material fact exists as to whether VW acted promptly in offering to repurchase the Subject Vehicle. "Whether a manufacturer willfully violated its obligation to repair the car or refund the purchase price is a factual question for the jury that will not be disturbed on appeal if supported by substantial evidence." (<i>Oregel v. American Isuzu Motors, Inc.</i> (2001) 90 Cal.App.4th 1094, 1104.) "[A] violation is not willful if the defendant's failure to replace or refund was the result of a good faith and reasonable belief the facts imposing the statutory obligation were not present. This might be the case, for example, if the manufacturer reasonably believed the product <i>did</i> conform to the warranty, or a reasonable number of repair attempts had not been made, or the buyer desired further repair rather than replacement or refund." (<i>Ibid.</i>) Here, Plaintiff argues VW ignored its request to repurchase or replace the Subject Vehicle, and did nothing to offer Plaintiff restitution until after the lawsuit was filed. The facts show that Plaintiff brought the Subject Vehicle to an authorized repair facility on November 3, 2022; February 25, 2023; March 10, 2023; and November 28, 2023, with complaints regarding the vehicle's electrical system. Due to persistent defects with the Subject Vehicle, on December 23, 2024, Plaintiff requested a "suitable remedy" from VW due to the unresolved issues with the vehicle. VW did not offer to repurchase the Subject Vehicle until March 20, 2025 – 87 days later. In this case, the court cannot conclude as a matter of law that VW acted promptly. VW did not offer to repurchase the Subject Vehicle for more than 50 days after receiving Plaintiff's notice, even assuming the pertinent window started on January 13, 2025, as urged by VW. Based on VW's cited

#	Case Name	Tentative
		authorities and evidence presented, a triable issue of material fact exists as to whether VW “promptly” offered to repurchase Plaintiff’s vehicle. Accordingly, summary adjudication is DENIED as to the first and third causes of action. Breach of Implied Warranty Claim Plaintiff argues that his breach of implied warranty claim can survive even when a manufacturer offers to repurchase a vehicle because unlike an express warranty claim, a buyer raising implied warranty claims is not required to give the seller an opportunity to reimburse or replace the product at issue. (<i>De Leon v. Ford Motor Co.</i> (C.D. Cal. Nov. 13, 2019) No. CV187975PSGFFMX, 2019 WL 7195325, at *6.) The California Court of Appeal has noted that the Song-Beverly Act’s remedies for breach of express and implied warranties are not identical. (<i>Mocek v. Alfa Leisure, Inc.</i> (2003) 114 Cal.App.4th 402, 406.) While breach of express warranty claims require a consumer to provide the manufacturer with a reasonable opportunity to repair the vehicle, the same requirement does not apply to breach of an implied warranty of merchantability. (<i>Id.</i> at 407.) The remedy for a breach of implied warranty under the Act is restitution of the price paid. (See Civ. Code, §§ 1791(d) and 1794(b).) VW’s sole argument and separate statement regarding Plaintiff’s breach of implied warranty claim is premised upon a finding that it complied with the Song-Beverly Act by promptly offering to repurchase the Subject Vehicle. Because a triable issue of material fact exists as to that issue, summary judgment on the second cause of action for breach of implied warranty is also DENIED. Civil Penalty/Attorney Fees VW’s summary adjudication of the issue of civil penalties and attorneys’ fees is also premised upon a finding that VW complied with the Song-Beverly Act by offering to repurchase Plaintiff’s vehicle. Because the court finds a triable issue of material fact exists as to this issue, summary adjudication is DENIED as to Plaintiff’s claim for civil penalties or attorney fees. Moreover, “[i]f summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense,

[illegible]